



POLICE DEPARTMENT CITY OF NEW YORK

September 1, 2017

MEMORANDUM FOR: Police Commissioner

Re: Police Officer Matthew Davis
Tax Registry No. 914746
Police Service Area 4
Disciplinary Case No. 2015-14795

Charges and Specifications:

1. Said Police Officer Matthew Davis, while on-duty and assigned to Police Service Area 4, on or about December 8, 2014, in New York County, failed to promptly report the disposition of a radio call directed to said Police Officer's unit.
P.G. 206-03, Page 2, Paragraph 4 – VIOLATIONS SUBJECT TO COMMAND DISCIPLINE
2. Said Police Officer Matthew Davis, while on-duty and assigned to Police Service Area 4, on or about December 8, 2014, in New York County, failed to return to his assigned post after the expiration of his meal period.
P.G. 206-03, Page 2, Paragraph 4 – PERFORMANCE ON DUTY – GENERAL
3. Said Police Officer Matthew Davis, while on-duty and assigned to Police Service Area 4, on or about December 8, 2014, in New York County, failed to make required entries in his activity log (PD112-145), to it: said Police Officer Davis failed to make any entries between 0705 hours and 1340 hours.
P.G. 212-08 – ACTIVITY LOGS

Appearances:

For the Department: Joshua Kleiman, Esq.
Department Advocate's Office
One Police Plaza
New York, New York 10038

For the Respondent: John Tynan, Esq.
Worth, Longworth & London, LLP
111 John Street – Suite 640
New York, New York 10038

Hearing Dates:

June 19 and July 25, 2017

Decision:

Respondent is found Guilty

Trial Commissioner:

ADCT Robert W. Vinal

REPORT AND RECOMMENDATION

The above-named member of the Department appeared before me on June 19, 2017 and July 25, 2017. Respondent pleaded not guilty to the subject charges.

The Assistant Department Advocate called Sergeant Paul Melendez, Lieutenant John Biscarri, and Sergeant Brendan Cassidy as witnesses. Respondent testified on his own behalf. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review.

DECISION

Respondent is found Guilty of the charged misconduct.

FINDINGS AND ANALYSIS

Many of the facts regarding Respondent's tour of duty on December 8, 2014, are not in dispute. Respondent does not contest that he was on duty, assigned to Police Service Area (PSA) 4, performing patrol duties on the second platoon as the operator of marked RMP 9128. He was partnered with Police Officer Alonzo Harris who served as the recorder. Respondent and Harris were assigned to Sector Charlie whose patrol area encompasses New York City Housing Authority Developments on the west side of Manhattan within the confines of the 10th Precinct. Since the PSA 4 stationhouse is located at 130 Avenue C (at East 9th Street), Manhattan, which is within Sector David, during daytime hours it can take as long as 30 minutes to drive from Sector Charlie to PSA 4.

Respondent also does not contest that at 1000 hours on December 8, 2014, he and Harris responded to a radio call regarding an eviction [REDACTED] They left [REDACTED] at 1120 hours and drove to PSA 4 to take their meal. Respondent parked their RMP in the PSA 4 garage. At 1150 hours, when Respondent signed the Interrupted Patrol Log at the front desk [Department's Exhibit (Dept. Ex.) 2], the desk officer, Lieutenant John Biscarri, handed him a Vehicle Inspection Report (VIR) to fill out [Dept. Ex. 4] after he had completed his meal. Respondent proceeded to take his meal inside PSA 4 from 1150 hours until 1250 hours when he returned to the PSA 4 garage and re-entered the RMP. Harris remained inside PSA 4.

Sergeant Paul Melendez testified that on December 8, 2014, he was on duty inside the PSA 4 stationhouse. When he relieved Lieutenant Biscarri at the front desk at 1330 hours so that Biscarri could take his meal, he received a phone call from Sergeant Cassidy who stated that he needed additional officers as the result of a Level One Mobilization. Cassidy asked him where Sector Charlie was. Sergeant Melendez recalled that he looked at the Interrupted Patrol Log which indicated that Sector Charlie was off meal as of 1250 hours. Sergeant Melendez entered the PSA 4 garage and saw Respondent and Harris inside their RMP which was parked in the PSA 4 "cop-of-the-month" parking spot. Melendez accused them of not responding to attempts by Central to raise them on their radio and he told them to hand him their Activity Logs.

When Melendez examined Respondent's Activity Log, he saw that the only entries that Respondent had made in his Activity Log up to that point on December 8, 2014, were "Mon 12-8-14 Tour 0705X1540" and "0705 PFO PSA4 R/C Lt Biscarri" and "White" (the color of the day). [Dept. Ex. 3]. Melendez drew a diagonal line under Respondent's entry, wrote "1340 hrs Sgt Melendez 12/08/14" on this line, closed out Respondent's Activity Log, and gave Respondent a new Activity Log book. Melendez then ordered them to report to the muster room.

Melendez testified that since an officer's travel time to and from the officer's meal location is included within the one hour meal period, an officer must be back within his or her assigned sector when the officer's one hour meal period ends. Because Sector Charlie is so far away from the PSA 4 stationhouse, officers who are assigned to Sector Charlie are encouraged to take their meal within Sector Charlie. Melendez testified that it should only take 10 minutes to fill out a VIR and that when he asked Respondent outside the muster room whether he had completed the VIR, he replied, "No."

Lieutenant John Biscarri testified that on December 8, 2014, he was on duty inside the PSA 4 stationhouse serving as the desk officer. When Respondent entered PSA 4 at 1150 hours, he signed the Interrupted Patrol Log at the front desk [Dept. Ex. 2] and Biscarri handed him the VIR to complete [Dept. Ex. 4]. Melendez relieved Lieutenant Biscarri at the front desk at 1330 hours so that Biscarri could take his meal hour.

Sergeant Brendan Cassidy testified that on December 8, 2014, he phoned PSA 4 because he needed additional officers to staff a Level One Mobilization. Melendez answered the call and Cassidy asked him where Sector Charlie was because Central had been unable to raise Sector Charlie. Cassidy interpreted the SPRINT/ICAD records and the audio recording of the radio transmissions between Central and Sector Charlie on December 8, 2014. [Dept. Ex. 1]. Sergeant Cassidy testified that these records establish that at 1000 hours Sector Charlie responded to a radio call regarding an eviction at 262 10th Avenue but that it was not until 1320 hours that Sector Charlie, for the first time, transmitted a final disposition regarding this radio call of "10-91 (Non-crime Corrected) on the eviction."

Respondent testified that after he and Harris completed the eviction "job," they got back into their RMP, and left [REDACTED] at 1120 hours. Respondent asserted that since Harris

was serving as the recorder, it was his job to promptly report the disposition of the eviction call which had been uneventful. They drove to PSA 4 to take their meal. Respondent parked their RMP in the PSA 4 garage, entered the stationhouse at 1150 hours, and signed into the Interrupted Patrol Log at the front desk. [Dept. Ex. 2], and Biscarri handed him the VIR to complete. Respondent took his meal inside PSA 4.

At 1250 hours, Respondent re-entered the RMP inside the PSA 4 garage while Harris, who was the PBA union delegate for officers assigned to PSA 4, performed PBA-related duties inside PSA 4. Respondent finished filling out the VIR at 1310 hours. From 1310 hours to 1340 hours, Respondent waited inside the RMP for Harris to rejoin him. Respondent testified that this 30 minute delay was entirely Harris' fault. When Harris walked into the garage and entered the RMP, he was followed by Sergeant Melendez. Melendez demanded to see their Activity Logs and then ordered them to report to the muster room. Respondent acknowledged that the only entry he had made in his Activity Log was a 0705 hours entry which denoted his tour of duty that day; his command; that he was assigned to Sector Charlie; that he was operating RMP 9128 Log; and that Lieutenant Biscarri had conducted roll call. [Dept. Ex. 2].

Respondent asserted that since he was the RMP operator, he had not been able to make any Activity Log entries because he had no break from driving and that he had delayed in making an entry regarding the eviction "job" because he wanted to wait until Harris, the recorder, had completed his own entry in his Activity Log regarding this "job." Respondent was given a new Activity Log in which he made additional entries [Resp. Ex. A]. Respondent was issued a Command Discipline which he refused to sign.

Analysis**Specification No. 1**

It is charged that Respondent failed to promptly report the disposition of a radio call that was directed to Respondent's unit. It is not disputed that Respondent and Harris were assigned to Sector Charlie and that at 1000 hours on December 8, 2014, he and Harris responded to a radio call regarding an eviction [REDACTED]. Respondent testified that they completed this eviction "job," got back into their RMP, and drove away [REDACTED] at 1120 hours. At that point, they were supposed to immediately notify the dispatcher of this fact and provide a final disposition code regarding the eviction radio call to the dispatcher.

The SPRINT/ICAD records and the audio recording of the radio transmissions between Central and Sector Charlie [DX 1], as interpreted by Sergeant Cassidy during his testimony, establish that it was not until 1320 hours that Sector Charlie, for the first time, transmitted a final disposition of "10-91 (Non-crime Corrected) on the eviction" and informed the dispatcher that Sector Charlie was now "10-98" (Resuming Patrol/Available).

Respondent asserted that since Harris was serving as the recorder, it was his job to promptly report the disposition of the eviction call. However, Patrol Guide Procedure No. 202-21 "Police Officer," subsection 13, states that "(w)hen dispatched to an assignment by the telephone switchboard operator, keep the telephone switchboard operator informed of police services rendered." Since this requirement is not limited to the police officer who is serving as the recorder, this Patrol Guide Procedure placed Respondent on notice that, even though he was the operator, he and the recorder were jointly responsible to insure that the dispatcher was promptly informed of the disposition of the radio call that had been directed to their unit.

Also, since the radio transmissions from the dispatcher to Sector Charlie [DX 1] show that the eviction "job" was the only radio call Sector Charlie responded to prior to Respondent's meal period, Respondent must have been aware that his unit had not reported the disposition of that assignment. Thus, I find that Respondent is jointly culpable with Harris regarding their unit's failure to promptly report the disposition of the eviction radio call that they had been assigned. Thus, Respondent is found Guilty of Specification No. 1.

Specification No. 2

It is charged that Respondent failed to return to his assigned post after the expiration of his meal period. Patrol Guide Procedure No. 202-21 "Police Officer," subsection 20, states: "Do not leave post/sector until meal actually commences and be back on post when meal is over. (Travel time is not authorized)." Thus, I credit Sergeant Melendez' testimony that since an officer's travel time to the meal location and the travel time from the meal location back to the officer's sector is included within the one hour meal period, and since Sector Charlie is so far away from the PSA 4 stationhouse, officers assigned to Sector Charlie are encouraged to take their meal at a location within Sector Charlie and not at the PSA 4 stationhouse.

Despite this, Respondent acknowledged that after he and Harris completed the eviction "job" at 1120 hours, he drove their RMP from 10th Avenue to the PSA 4 stationhouse at 130 Avenue C (at East 9th Street) so that he could take his meal inside the PSA 4 stationhouse. Respondent entered PSA 4 at 1150 hours and signed into the Interrupted Patrol Log at the front desk. (Dept. Ex. 2). Since Patrol Guide Procedure No. 202-21 does not authorize travel time to the meal location, when Respondent entered PSA 4 at 1150 hours he was already 30 minutes into his meal period. Respondent also admitted that he did not leave the stationhouse and re-enter his

RMP, which was parked in the PSA 4 the garage, until 1250 hours, which was 30 minutes after his actual one hour meal period had expired. Thus, even if Respondent had immediately driven his RMP from PSA 4 back to Sector Charlie, because it is about a 30-minute trip during the day, he would have arrived back in his sector one hour after his actual meal period had expired.

Moreover, Respondent acknowledged that after he and Harris had finished their meal, they remained at PSA 4. Respondent testified that while Harris was inside PSA 4 performing union delegate duties, he completed the VIR that Lieutenant Biscarri had handed him when he entered PSA 4 at 1150 hours. However, even if I credit Respondent's claim that he filled out the VIR,¹ and that it took him from 1250 hours to 1310 hours to complete it,² he admitted that he then waited inside the RMP for another 30 minutes because Harris did not re-enter PSA 4 garage until 1340 hours. Respondent asserted that the 30 minute period that he waited in the RMP for Harris was Harris' fault. However, Respondent was under a personal duty to insure that he was back within his assigned sector at the end of his meal period and Respondent did not claim that he had attempted to find Harris to insist that Harris get back in their RMP so that they could drive from PSA 4, which is in Sector David, to their new patrol assignment in Sector Adam/Boy. Based on the above, Respondent is found Guilty of Specification No. 2.

Specification No. 3

It is charged that Respondent failed to make any entries in his Activity Log regarding his on duty activities on December 8, 2014 between 0705 hours and 1340 hours. Respondent acknowledged that when Sergeant Melendez entered the parking garage at 1340 hours and demanded to see his Activity Log, the only entry he had made in his Activity Log was a 0705

¹ Melendez testified that when he asked Respondent if he had completed the VIR he replied, "No."

² Melendez testified that it should only take 10 minutes to fill out a VIR.

hours entry which denoted his tour of duty that day; his command; that he was assigned to Sector Charlie; that he was operating RMP 9128 Log; and that Lieutenant Biscarri had conducted roll call. [Dept. Ex. 2].

Respondent asserted that since he was the RMP operator he was unable to make any activity log entries because, other than his meal period, he had no break from his driving duties. This claim is inconsistent with his testimony that after he completed the VIR at 1310 hours, he sat in the RMP with nothing to do for 30 minutes, from 1310 hours to 1340 hours, as he waited for Harris to rejoin him. I also reject Respondent's explanation for why, as of 1340 hours, he had not yet made an entry in his Activity Log that at 1000 hours he and Harris responded to a radio call regarding an eviction, an event that required him to make Activity Log entries.³ Respondent asserted that he had delayed in making an entry regarding the eviction "job" because he wanted to wait until Harris, the recorder, had completed his own entry in his Activity Log regarding this "job." However, since an officer is required to keep his or her Activity Log up-to-date during a tour of duty and since Patrol Guide Procedure No. 212-08, "Activity Logs," subsection c., requires that Activity Log entries be entered chronologically, Respondent was required to make an entry in his Activity Log regarding the eviction call before he made entries regarding the subsequent events that he later cited in in his new Activity Log [Resp. Ex. A], including the fact that he left his sector at about 1120 hours and entered the PSA 4 stationhouse at 1150 hours to take his meal.

Finally, none of the excuses Respondent offered during his testimony serve to explain why his Activity Log did not contain required entries specific to his assignment as the RMP Operator; entries he was supposed to have made before he and Harris responded to the eviction

³ See Patrol Guide Procedure No. 214-13, subsection 6.

call. Patrol Guide Procedure No. 212-08, "Activity Logs," subsection 1.b., requires the operator to conduct an inspection of the RMP and to record in his or her Activity Log the result of this vehicle inspection including the condition of the RMP, the odometer reading, and the amount of gas in the RMP's tank. Similarly, Patrol Guide Procedure No. 202-22, "Radio Motor Patrol Operator," subsection 20, states that the operator must "(m)ake ACTIVITY LOG (PD112-145) entry of findings, odometer reading and amount of gasoline in the tank as registered by the indicator, in addition to all other required entries as per *Patrol Guide 212-08, Activity Logs*." Respondent's Activity Log (Dept. Ex. 2) does not contain any of these required entries regarding RMP 9128. Therefore, Respondent is found Guilty of Specification No. 3.

PENALTY RECOMMENDATION

In order to determine an appropriate penalty, Respondent's service record was examined. *See Matter of Pell v. Board of Education*, 34 N.Y.2d 222 (1974). Respondent was appointed to the Department on January 30, 1995. Information from his personnel record that was considered in making this penalty recommendation is contained in an attached Confidential Memorandum.

Respondent has been found guilty of having failed to report the disposition of a radio call from 1120 hours until 1340 hours; of having failed to return to his assigned post after the expiration of his meal period; and of having failed to make any entries in his Activity Log between 0705 hours and 1340 hours on December 8, 2014. With regard to this last charge, it should be noted that in July 2015, Patrol Guide Procedure No. 212-08, "Activity Logs," was revised⁴ "in order to alleviate the burden upon" RMP operators of making non-enforcement action Activity Log entries. Under this new procedure, in lieu of making entries regarding assignments received; pertinent information obtained; tasks performed; and absences from

⁴ Pursuant to Interim Order 53 issued on July 10, 2015.

sector; the RMP operator is now permitted to simply make the entry: "see recorder's Activity Log."⁵

The Assistant Department Advocate (the Advocate) acknowledged that Respondent was originally issued a Command Discipline regarding his misconduct. Despite this fact, the Advocate recommended that Respondent forfeit 30 vacation days and that he also be placed on dismissal probation for one year as a penalty, based on his annual performance evaluations (see attached Confidential Memorandum). The Advocate noted that the SPRINT/ICAD records and the audio recording of the radio transmissions from the dispatcher [DX 1] show that Respondent and Harris did not respond to calls the dispatcher made to Sector Charlie between 1241 hours and 1314 hours. Although this raises the suspicion that Respondent and Harris were not properly monitoring their radio, Respondent is not charged here with having failed to monitor his radio.

Nonetheless, in support of his penalty recommendation, the Advocate cited *Case Nos. 2014-11666, 2013-10705, 2014-12567* (signed March 22, 2016), where a 17-year police officer who had no prior disciplinary record forfeited 25 vacation days and was placed on dismissal probation for one year after he was found guilty of having been absent from his post and having failed to monitor his radio for 40 minutes. That officer was also found guilty of four other charges: being inattentive on post while using his cell phone; failing to properly handle a radio call regarding an Emotionally Disturbed Person; replying to questions posed to him by a supervisor in a sarcastic manner; and failing to salute a supervisor.

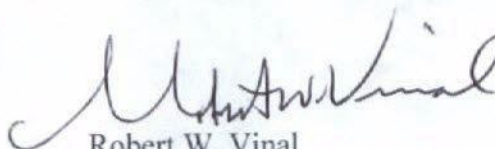
As discussed in the attached Confidential Memorandum, in 2015 Respondent forfeited ten vacation days as a penalty after he was found guilty of a single Specification charging him with having failed to remain alert and observe conditions at his fixed post while he was seated in

⁵ See Interim Order 53, revised NOTE.

a RMP. As to the Advocate's recommendation that Respondent be placed on one-year of dismissal probation as part of his penalty here, although Respondent's previous misconduct took place only one year before his misconduct here, I have taken into consideration that during Respondent's first 20 years of service, from 1995 to 2015, he was not found guilty of any formal charge of misconduct and he was issued only one Command Discipline.

Therefore, consistent with progressive discipline, I recommend that Respondent forfeit 30 vacation days as a penalty.

Respectfully submitted,



Robert W. Vinal
Assistant Deputy Commissioner Trials

APPROVED

DEC 07 2017

JAMES P. O'NEILL
POLICE COMMISSIONER



POLICE DEPARTMENT CITY OF NEW YORK

From: Deputy Commissioner - Trials
To: Police Commissioner
Subject: CONFIDENTIAL MEMORANDUM
POLICE OFFICER MATTHEW DAVIS
TAX REGISTRY NO. 914746
DISCIPLINARY CASE NO. 2015-14795

Respondent received an overall rating of 3.0 on his 2016 annual performance evaluation, 2.5 on his 2015 annual evaluation, and 2.5 on his 2014 annual evaluation. He has no medals. [REDACTED]

In 2015, he forfeited ten vacation days as a penalty after he was found guilty at trial of wrongfully failing to remain alert and observe conditions at his fixed post while he was seated inside a Department vehicle on December 8, 2013.

On October 20, 2014, he was placed on Level 1 Performance Monitoring as the result of having received negative performance evaluations. This Monitoring ended on July 24, 2015. On July 24, 2015, he was placed on Level 2 Performance Monitoring. This Monitoring is continuing.

For your consideration.

Robert W. Vinal
Assistant Deputy Commissioner – Trials